

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JEROME MARSHALL,

Plaintiff,

INDEX NO:

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
ANTHONY GRINGAS,

Defendants,
-----X

Plaintiff designates QUEENS COUNTY as the place of trial.
The basis of venue is the place of the occurrence
The accident occurred at 121-20 Grayson Street, Queens, New York.

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint of this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within TWENTY (20) DAYS after the service of this summons, exclusive of the day of service (or within THIRTY (30) DAYS after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief request in the complaint.

Dated: Brooklyn, New York
October 16, 2023



ATTORNEY FOR PLAINTIFF
G. WESLEY SIMPSON, P.C.
1016 Ralph Avenue, 1st Floor
Brooklyn, New York 11236
(718) 345 8213

Defendants' Address:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER ANTHONY GRINGAS

113th Precinct

167-02 Baisley Boulevard

Queens, New York 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JEROME MARSHALL,

Plaintiff,

VERIFIED COMPLAINT

-against-

INDEX #:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
ANTHONY GRINGAS,

Defendants,

-----X

Plaintiff, by his attorney, G. WESLEY SIMPSON, P.C., complaining of the
defendants alleges as follows:

FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

1. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK is a municipal corporation.
2. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK exists pursuant to the laws of the State of New York.
3. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK exists subject to the laws of the State of New York.
4. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK maintains and is responsible for the maintenance the police force known as NEW YORK CITY POLICE DEPARTMENT.
5. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK owns NEW YORK CITY POLICE DEPARTMENT.

6. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK controls and is responsible for the control of NEW YORK CITY POLICE DEPARTMENT.

7. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK manages NEW YORK CITY POLICE DEPARTMENT.

8. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK is responsible for the management of NEW YORK CITY POLICE DEPARTMENT.

9. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK supervises NEW YORK CITY POLICE DEPARTMENT.

10. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK is responsible for the supervision of NEW YORK CITY POLICE DEPARTMENT.

11. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK operates NEW YORK CITY POLICE DEPARTMENT.

12. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK is responsible for the operation of NEW YORK CITY POLICE DEPARTMENT.

13. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK hires NEW YORK CITY POLICE DEPARTMENT police officers.

14. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK is responsible for the hiring of NEW YORK CITY POLICE DEPARTMENT police officers.

15. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK via NEW YORK CITY POLICE DEPARTMENT trains its police officers.

16. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK via NEW YORK CITY POLICE DEPARTMENT is responsible for the training of its police officers.

17. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK via NEW YORK CITY POLICE DEPARTMENT is responsible for the retention of its police officers.

18. That always hereinafter mentioned, the defendant, THE CITY OF NEW YORK via NEW YORK CITY POLICE DEPARTMENT is responsible for the disciplining of its police officers.

19. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is an arm of THE CITY OF NEW YORK.

20. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT exists pursuant and subject to the laws of THE CITY OF NEW YORK.

21. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT employs police officers on behalf of THE CITY OF NEW YORK.

22. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT trains police officers on behalf of THE CITY OF NEW YORK.

23. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the training of its police officers.

24. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the disciplining of its police officers.

25. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the retention of its police officers.

26. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT manages its police officers.

27. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the management of its police officers.

28. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT controls its police officers.

29. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the control of its police officers.

30. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT supervises its police officers.

31. That always hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT is responsible for the supervision of its police officers.

32. That always hereinafter mentioned, the defendant, ANTHONY GRINGAS was and still is employed by THE CITY OF NEW YORK as a NEW YORK CITY POLICE DEPARTMENT police officer.

33. That always hereinafter mentioned, the defendant, Police Officer:

ANTHONY GRINGAS was and still is employed by NEW YORK CITY POLICE DEPARTMENT.

34. That always hereinafter mentioned, the defendant, Police Officer:

ANTHONY GRINGAS was and still is employed by THE CITY OF NEW YORK as police officer.

35. That always hereinafter mentioned, the defendant, Police Officer:

ANTHONY GRINGAS was and still is an employee, agent and or servant of NEW YORK CITY POLICE DEPARTMENT acting in the capacity of a police officer.

36. That on or about September 21, 2022, the plaintiff, JEROME

MARSHALL was lawfully in his home located at 121-20 Grayson Street, Queens, New York, when defendants, without reason, probable cause, justification, or provocation, unlawfully, falsely arrested, and detained plaintiff.

37. That on said date at or about 2:10 p.m., NEW YORK CITY POLICE

DEPARTMENT police officers arrived at plaintiff's home on the false report that plaintiff possesses a gun. Plaintiff was at home when the police officers came, he opened his door and advised the police officer that there was no gun in the home, that he did not wave a gun at anyone, and the police officers are welcome to view the video recording of his front door approach to see he is telling the truth. The police officers viewed the video recording which did not show plaintiff going to the front door with a gun. The police were also allowed to search plaintiff home inside and out and found no gun. Despite finding no evidence of a gun defendants without probable cause, justification or consent arrested plaintiff and in issued false process against plaintiff and maliciously prosecuted

him with knowledge that the complaint and charges against plaintiff was false and lacked judicial justification.

38. That defendants intentionally prosecuted plaintiff with knowledge they lacked probable cause for the charges.

39. That defendants intentionally prosecuted plaintiff even though they should have known they lacked probable cause for the charges.

40. That defendants intentionally continued to prosecute plaintiff even after their investigation revealed they lacked probable cause to continue prosecuting plaintiff.

41. That defendants intentionally prosecuted plaintiff even after they should have known they lacked probable cause for the charges.

42. That defendants prosecuted plaintiff to embarrass, harass, or otherwise harm him and plaintiff was embarrassed, harassed and or otherwise harmed by defendants' malicious prosecution.

43. That defendants continued to prosecute plaintiff to embarrass, harass, or otherwise harm him and plaintiff was embarrassed, harassed and or otherwise harmed by defendants continued malicious prosecution.

44. That defendants prosecuted plaintiff out of malice resulting from plaintiff's identity as a young Black African American male with dreads.

45. That defendants continued to prosecute plaintiff out of malice resulting from plaintiff's identity as a young Black African American male with dreads.

46. That defendants prosecuted plaintiff out of malice resulting from plaintiff's identity as a young Black African American male of Jamaican descent with dreads affiliated with the Rastafarian Religion.

47. That defendants continued to prosecute plaintiff out of malice resulting from plaintiff's identity as a young Black African American male of Jamaican descent with dreads affiliated with the Rastafarian Religion.

48. That defendants maliciously prosecuted plaintiff to meet arrest quota and not to bring plaintiff to justice for criminal conduct.

49. That defendants continued the prosecution of plaintiff to meet arrest quota and not to bring plaintiff to justice for criminal conduct.

50. That defendants maliciously prosecuted plaintiff to meet criteria for promotion and not to bring plaintiff to justice for criminal conduct.

51. That defendants continued the prosecution of plaintiff to meet promotion criteria and not to bring plaintiff to justice for criminal conduct.

52. That defendants maliciously prosecuted plaintiff to meet criteria for pay raise and not to bring plaintiff to justice for criminal conduct.

53. That defendants continue the prosecution of plaintiff to meet criteria for pay raise and not to bring plaintiff to justice for criminal conduct.

54. That the malicious prosecution defendants brought against plaintiff ended after the court dismissed all charges.

55. That the municipal defendants acting through their agent, servant and or employee ANTHONY GRINGAS initiated the false/malicious prosecution of plaintiff with knowledge they lacked probable cause to commence and continue the prosecution.

56. That defendants knew or should have known that the charges against plaintiff were unsubstantiated, lacked probable cause and could not be proven in a court of law but maliciously prosecuted plaintiff.

57. That defendants prosecuted and continued to prosecute plaintiff out of malice as they knew or should have known that there was no probable cause for the prosecution of plaintiff.

58. That defendants issued process against plaintiff nonetheless and proceeded to prosecute plaintiff despite knowing the prosecution was not supported by valid evidence.

59. That defendants prosecuted plaintiff because of malice on the part of said defendants.

60. That defendants maliciously prosecuted plaintiff because of his Color.

61. That defendants maliciously prosecuted plaintiff because of his Race.

62. That defendants maliciously prosecuted plaintiff because of his National Origin.

63. That defendants maliciously prosecuted plaintiff because of his Gender.

64. That defendants maliciously prosecuted plaintiff because of his Hair.

65. That defendants maliciously prosecuted plaintiff because of his Religion.

66. That the case against plaintiff was dismissed by the Court.

67. That a General Municipal Law Section 50-H Hearing was conducted by defendants before the commencement of this action.

68. That the matter was presented for compromise and settlement, but more than 90 days passed, and the defendants refused to settle and or compromise the matter.

69. That this action is started within one (1) year and ninety (90) days from the happening of this accident.

70. That the defendants violated the Statutes, Codes, Rules, Regulations, Ordinances, Laws and Constitutions, Civil Rights and Human Rights Laws of the United States of America, The City of New York, and The State of New York.

71. That because of said malicious prosecution plaintiff was caused to experience anxiety, stress, embarrassment, and damage to his standing in his community.

72. That because of said malicious prosecution plaintiff was caused to expend money for legal fees, expenses, costs, and disbursements.

73. That because of said malicious prosecution plaintiff could not spend time with his infant son.

74. That because of the foregoing, the plaintiff, JEROME MARSHALL, was damaged by defendants in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff damages to be determined at the time of trial.

SECOND CAUSE OF ACTION FOR ABUSE OF PROCESS

75. That the plaintiff repeats and reiterates the allegations contained in paragraph 1 through 74 of this complaint with the same force and effect as if more fully set forth below.

76. That defendants intentionally, without justification or cause, issued criminal process against plaintiff falsely charging him with menacing in the 2d degree and criminal possession of a weapon (firearm) in the 4th degree.

77. That defendants intentionally, without justification or cause, issued criminal process against plaintiff falsely charging him with menacing in the 2d degree

and criminal possession of a weapon (firearm) in the 4th degree with intent to cause plaintiff harm to his reputation, to damage his character, to embarrass him, to harass him and to cause him fear, anxiety, and stress.

78. That the false criminal process defendants issued against plaintiff, without justification or cause, caused harm to his reputation, damaged his character, embarrassed him, harassed him and to cause him experience fear, anxiety, and stress.

That defendants prosecuted plaintiff out of malice resulting from plaintiff's identity as a young Black African American male with dreads.

79. That Defendants intentionally, knowingly, and willfully issued or caused unjust criminal process to be issued against plaintiff with the intent of finding plaintiff guilty of crimes defendants knew or should have known plaintiff did not commit.

80. That Defendants intentionally, knowingly, and willfully issue criminal process against plaintiff with the intent of finding plaintiff guilty of crime defendants knew or should have known plaintiff did not commit and intending plaintiff to spend time behind bars for a crime he did not commit.

81. That Defendants intentionally, knowingly, and willfully issue criminal process against plaintiff with the intent of benefiting there from through promotion, salary increases and heightened status in defendants' workplace among other benefits.

82. That the defendants issued false process and maliciously prosecuted plaintiff to meet their arrest quota, and to improve their chances for advancement in the police department.

83. That Defendants knew or should have known that their action would harm plaintiff, yet defendants proceeded to issue false process against plaintiff.

84. That defendants committed abuse of process against plaintiff he identifies as a young Black African American male with dreads.

85. That defendants committed abuse of process against plaintiff because he identifies as a young Black African American male of Jamaican descent with dreads affiliated with the Rastafarian Religion.

86. That defendants committed abuse of process against plaintiff to meet arrest quota.

87. That defendants committed abuse of process against plaintiff to meet promotion criteria.

88. That defendants committed abuse of process against plaintiff to meet criteria for pay raise.

89. That the municipal defendants acting through their agent, servant and or employee ANTHONY GRINGAS committed abuse of process against plaintiff by issuing criminal process defendants knew or should have known were false, unjustified, and lacked legal justification/probable.

90. That because of said abuse of process, committed by defendants, plaintiff was caused to experience fear, anxiety, stress, embarrassment, humiliation, damage character and reputation,

91. That because of said abuse of process, committed by defendants, plaintiff was caused to expend money for legal fees, expenses, costs, and disbursements.

92. That because of said abuse of process, committed by defendants, plaintiff could not spend time with his infant son.

93. That because of the foregoing, the plaintiff, JEROME MARSHALL, was damaged by defendants in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff damages to be determined at the time of trial.

THIRD CAUSE OF ACTION PURSUANT TO MONELL

94. That the plaintiff repeats and reiterates the allegations contained in paragraph 1 through 93 of this complaint with the same force and effect as if more fully set forth below.

95. New York City and NYPD has a formal/informal policy, practice, procedure, and or custom of arresting innocent minorities and prosecuting them resulting in many innocent people, especially Black and Brown people, being wrongfully convicted.

96. That NEW YORK CITY and NYPD adopted or promulgated a formal/informal policy, practice, procedure, and or custom of arresting innocent minorities especially Black and Brown people, charging them with serious crimes and then pressure them to plead guilty despite their innocence, thereby greenlighting police officers to continue arresting innocent Black and Brown individuals.

97. That NEW YORK CITY, NYPD, the New York Court System, and prosecutors have a formal/informal policy, practice, procedure, and or custom of threatening Black and Brown people to impose much harsher sentences than the plea offer if the accused goes to trial and lose thereby ensuring the innocent will plead guilty thereby greenlighting police officers to continue arresting innocent Black and Brown individuals.

98. That NEW YORK CITY, and NYPD have a formal/informal policy, practice, procedure, and or custom of not charging police officers that issue false process and maliciously prosecute accused known to be innocent, thereby greenlighting police officers to continue arresting innocent Black and Brown individuals.

99. That NEW YORK CITY and NYPD have a formal/informal policy, practice, procedure, and or custom of not charging police officers that issue false process and maliciously prosecute accused they should know was innocent, especially Black and Brown persons, thereby greenlighting police officers to continue arresting innocent Black and Brown individuals.

100. That NEW YORK CITY, and NYPD have a formal/informal criminal persecution policy, practice, procedure, and or custom that disproportionately impacted Black and brown people.

101. That NEW YORK CITY and NYPD have a formal/informal policy, practice, procedure, and or custom of over policing Black and Brown people on the false pretext that most crimes are committed by Black and Brown people.

102. That NEW YORK CITY and NYPD have a formal/informal policy, practice, procedure, and or custom of over policing Black and Brown communities on the false pretext that most crimes are committed by Black and brown people.

103. That NEW YORK CITY and NYPD has a pervasive, longstanding practice that has the force of law of arresting and prosecuting Black and Brown persons for minor infraction by stacking charges such as resisting arrest, disorderly conduct, interfering with a governmental function, menacing, assaulting a police officer and so on.

104. That NEW YORK CITY and NYPD have a formal/informal policy, practice, procedure, and or custom called “Broken Windows Policing” that focuses on aggressively pursuing misdemeanor crimes, to reduce the number of major crimes. Police forces focus on areas with higher crime rates, and issue tickets and arrest individuals for low-level infractions resulting in disproportionate arrest and prosecution of Black and Brown people.

105. That NEW YORK CITY and NYPD failed to train their police officers to adopt and adhere to truthful, accurate and complete evidence collection rules and procedures.

106. That NEW YORK CITY and NYPD failed to train their police Officers to investigate alternate theories for a case to rule out their merit before proceeding to charge and prosecute the accused.

107. That NEW YORK CITY Mayor Eric Adams reinstalled the “Broken Windows Policing” policy, that focuses on aggressively pursuing misdemeanor crimes, to reduce the number of major crimes, with knowledge of its adverse constitutional impact on Black and Brown persons: aggressive over policing of minority communities that leads to tragic death of Black citizens.

108. That NEW YORK CITY Mayor Eric Adams reinstalled the “Broken Windows Policing” policy knowing its implementation discriminates against Black and Brown communities.

109. That NEW YORK CITY Mayor Eric Adams reinstalled the “Broken Windows Policing” policy knowing its implementation discriminates against Black and Brown communities.

110. That NEW YORK CITY Mayor Eric Adams reinstalled the “Broken Windows Policing” policy knowing its implementation will result in the violation of the constitutional rights of Black and Brown persons.

111. That defendant, ANTHONY GRINGAS, in his capacity as a NYPD police officer violated the constitutional rights of plaintiff by issuing false process against him because of his color, national origin, race, gender, and religious identity.

112. That defendant, ANTHONY GRINGAS, in his capacity as a NYPD police officer violated the constitutional rights of plaintiff by maliciously prosecuted plaintiff because of his color, national origin, race, gender, and religious identity.

113. That defendant, ANTHONY GRINGAS, in his capacity as a NYPD police officer violated the constitutional rights of plaintiff by continued prosecution of plaintiff with full knowledge plaintiff was innocent because of his color, national origin, race, gender, and religious identity.

114. That ANTHONY GRINGAS’ violation of plaintiff’s constitutional rights resulted from an official and or unofficial custom, practice, policy and or procedure of the NYPD and NEW YORK CITY.

115. That ANTHONY GRINGAS’ violation of plaintiff’s constitutional rights resulted from the NYPD and NEW YORK CITY deliberate indifference in failing to train or supervise officer GRINGAS.

116. That ANTHONY GRINGAS’ violation of plaintiff’s constitutional rights by Police Officer GRINGAS resulted from the reimplementing of the Broken Windows Policing policy by NEW YORK CITY

117. That ANTHONY GRINGAS' malicious prosecution of plaintiff resulted from an official and or unofficial custom, practice, policy and or procedure of the NYPD and NEW YORK CITY.

118. That ANTHONY GRINGAS malicious prosecution of plaintiff resulted from the NYPD and NEW YORK CITY deliberately indifference in failing to train or supervise officer GRINGAS.

119. That the malicious prosecution of plaintiff by Police Officer GRINGAS resulted from the reimplementation of the Broken Windows Policing policy by NEW YORK CITY.

120. That the issuance of false process against plaintiff by Police Officer GRINGAS resulted from an official and or unofficial custom, practice, policy and or procedure of the NYPD and NEW YORK CITY.

121. That the issuance of false process against plaintiff by Police Officer GRINGAS resulted from the NYPD and NEW YORK CITY deliberate indifference in failing to train or supervise officer GRINGAS.

122. That the issuance of false process against plaintiff by Police Officer GRINGAS resulted from the reimplementation of the Broken Windows Policing policy by NEW YORK CITY.

123. That because of defendants' actions and or omissions as stated above, plaintiff was caused to experience fear, anxiety, stress, embarrassment, humiliation, damage character and reputation,

124. That because of defendants' actions and or omissions as stated above, plaintiff was caused to expend money for legal fees, expenses, costs, and disbursements.

125. That because of defendants' actions and or omissions as stated above, plaintiff could not spend time with his infant son.

126. That because of defendants' actions and or omissions as stated above, plaintiff, JEROME MARSHALL, was damaged by defendants in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff damages to be determined at the time of trial.

FOURTH CAUSE OF ACTION SECTION 1983 CONSTITUTIONAL VIOLATION

127. That the plaintiff repeats and reiterates the allegations contained in paragraph 1 through 126 of this complaint with the same force and effect as if more fully set forth below.

128. That defendants intentionally issued false process and maliciously prosecuted plaintiff because of plaintiff's race, gender, color, his hair, age, religion, and national origin.

129. That the defendant Police Officer GRINGAS issued false process and maliciously prosecuted plaintiff to meet NYPD arrest quota, and improve his chances for promotion, pay increase and his reputation as a police officer.

130. That defendants engaged in the unlawful customs, policies, practices, policy and or procedure of issuing false process and maliciously prosecuting young Black male in violation of their constitutional rights.

131. That defendants used the Broken Window Policing policy as a basis for issuing false process and maliciously prosecuting young Black male in violation of their constitutional rights.

132. That defendant GRINGAS, while acting under the color of the law, violated MR. MARSHALL'S constitutional rights by issuing false process and maliciously prosecuting him even after GRINGAS knew or should have known MR. MARSHALL was innocent of the charges.

133. That defendant GRINGAS' issuance of false process and his malicious prosecution of MR. MARSHALL was unjustified and violated clearly established law.

134. That defendant GRINGAS' issuance of false process and his malicious prosecution of MR. MARSHALL unreasonably and unlawfully.

135. That defendant GRINGAS' issuance of false process and his malicious prosecution of MR. MARSHALL were unnecessary, unreasonable, unlawful, and unjustified.

136. That defendants knew or should have known their policing policies, especially Broken Windows Policing, discriminate against Black and Brown people by giving police officers the green light to aggressively over police and abuse the constitutional rights of Black and Brown persons.

137. That defendants violated Section 1983, the 14th, 4th and 5th amendments, among others, of the US constitution.

138. That defendants violated the human rights laws and constitutions of the United States of America and the City and State of New York.

139. That defendants knew or should have known the complaint against plaintiff was false but issued process and maliciously prosecuted plaintiff anyway.

140. That the charges against plaintiff⁷ was dismissed.

141. That a notice of claim was duly filed with THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT within 90 days from the date of this accident.

142. That the matter was presented for compromise and settlement but more than 90 days have passed, and the defendants refused to settle and or compromise the matter.

143. That this action is started within one (1) year and ninety (90) days from the happening of this accident.

144. That the defendants violated the Statutes, Codes, Rules, Regulations, Ordinances, Laws and Constitutions, Civil Rights and Human Rights Laws of the United States of America, The City of New York and The State of New York.

145. That because of defendants' actions and or omissions as stated above, plaintiff was caused to experience fear, anxiety, stress, embarrassment, humiliation, damage character and reputation,

146. That because of defendants' actions and or omissions as stated above, plaintiff was caused to expend money for legal fees, expenses, costs, and disbursements.

147. That because of defendants' actions and or omissions as stated above, plaintiff could not spend time with his infant son.

148. That defendant GRINGAS' actions, and possibly other employees, agents, and/or representatives of the NEW YORK CITY and the NYPD, were motivated by evil motive or intent and/or involved a reckless or callous indifference to the federally protected rights of MR. MARSHALL an award of punitive damages is appropriate to the fullest extent permitted by law.

149. That because of defendants' actions and or omissions as stated above, plaintiff, JEROME MARSHALL, was damaged by defendants in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff damages to be determined at the time of trial.

FIFTH CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING AND RETENTION

150. That the plaintiff repeats and reiterates the allegations contained in paragraph 1 through 149 of this complaint with the same force and effect as if more fully set forth below.

151. That defendant CITY OF NEW YORK was reckless, negligent, and careless in their ownership, management, control, supervision, operation, and direction of THE NEW YORK CITY POLICE DEPARTMENT by failing to train their police officer to respect and uphold the constitutional rights of Black and Brown people.

152. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the management of their police officers and particularly officer GRINGAS.

153. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the supervision of their police officers and particularly officer GRINGAS.

154. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the control of their police officers and particularly officer GRINGAS.

155. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the instruction of their police officers and particularly officer GRINGAS.

156. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the training of their police officers and particularly officer GRINGAS.

157. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the hiring of their police officers and particularly officer GRINGAS.

158. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the retention of their police officers and particularly officer GRINGAS.

159. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless, and reckless in the disciplining of their police officers and particularly officer GRINGAS.

160. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT caused their police officers and particularly officer GRINGAS to develop and use overly aggressive methods of policing Black and Brown communities.

161. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to identify and counsel police officers known to discriminate against Black and Brown communities.

162. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to identify and counsel police officers accused of illegal and unlawful acts against Black and Brown communities.

163. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to discipline police officers that discriminate against Black and Brown communities.

164. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to retrain police officers that discriminate against Black and Brown communities.

165. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to discharge police officers that discriminate against minorities.

166. That the defendants CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to train or inadequately train its police officers to professionally interact with the Black and Brown communities.

167. That defendants knew or should have known that police officer involved herein have a history of discrimination against minorities but did nothing about it.

168. That defendants knew or should have known that that police officers involved herein have a history of issuing false process against Black and Brown persons without probable cause or justification but did nothing about it.

169. That defendants knew or should have known that that police officers involved herein have a history of maliciously prosecuting Black and Brown people but did nothing about it.

170. That defendants knew or should have known that it is the practice of their Police Officers and those in question to discriminate against Black and Brown people but did nothing about it.

171. That defendants knew or should have known that it is the habit of their Police Officers and those in question to discriminate against Black and Brown people but did nothing about it.

172. That defendants knew or should have known that it is the practice of their Police Officers and those in question to issue false process against Black and Brown individuals but did nothing about it.

173. That defendants knew or should have known that it is the practice of their Police Officers and those in question to maliciously prosecute Black and Brown individuals but did nothing about it.

174. That it is the policy, practice, custom and procedure of defendants to encourage their police officers to discriminate against minorities.

175. That it is the policy, practice, custom and procedure of defendants to turn a blind eye to their police officers' issuance of false process against Black and Brown persons without probable cause and or legal justification.

176. That it is the policy, practice, custom and procedure of defendants to turn a blind eye to their police officers' malicious prosecution of Black and Brown persons without probable cause and or legal justification.

177. That it is the policy, practice, custom and procedure of defendants to have their police officers target Black and Brown people for false arrest, issuance of false process and malicious prosecution in violation of the constitution, Civil Rights and

Human Rights Laws of the United States of America and the City and State of New York.

178. That it is policy, practice, custom and procedure of defendants to have their police officers' issue false process and maliciously prosecute Black and Brown individuals because of the color of their skin.

179. That the policy, practice, custom and procedure of defendants are designed to intimidate and criminalize Black and Brown people regardless of their guilt.

180. That because of defendants' actions and or omissions as stated above, plaintiff was caused to experience fear, anxiety, stress, embarrassment, humiliation, damage character and reputation,

181. That because of defendants' actions and or omissions as stated above, plaintiff was caused to expend money for legal fees, expenses, costs, and disbursements.

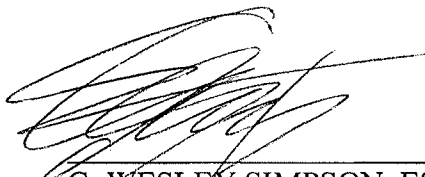
182. That because of defendants' actions and or omissions as stated above, plaintiff could not spend time with his infant son.

183. That defendant GRINGAS' actions, and possibly other employees, agents, and/or representatives of the NEW YORK CITY and the NYPD, were motivated by evil motive or intent and/or involved a reckless or callous indifference to the federally protected rights of MR. MARSHALL an award of punitive damages is appropriate to the fullest extent permitted by law.

184. That because of defendants' actions and or omissions as stated above, plaintiff, JEROME MARSHALL, was damaged by defendants in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff damages to be determined at the time of trial.

WHEREFORE, plaintiff demand judgment against the defendants herein in the FIRST CAUSE OF ACTION in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff's damages to be determined at the time of trial; in the SECOND CAUSE OF ACTION in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff's damages to be determined at the time of trial; in the THIRD CAUSE OF ACTION in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff's damages to be determined at the time of trial; in the FOURTH CAUSE OF ACTION in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff's damages to be determined at the time of trial; in the FIFTH CAUSE OF ACTION in a sum that exceeds the jurisdiction of the lower courts, and the amount of plaintiff's damages to be determined at the time of trial; together with punitive damages, the costs and disbursement of this action and for such other and further relief as the Court may deem just and proper.

Dated: Brooklyn, New York
October 16, 2023



G. WESLEY SIMPSON, ESQ.
G. WESLEY SIMPSON, P.C.
Attorney for Plaintiff
1016 Ralph Avenue, 1st Floor
Brooklyn, New York 11236
(718) 345 8213

STATE OF NEW YORK)
COUNTY OF KINGS) SS:

I am the plaintiff in the within action. I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the content thereof. The same are true to my own knowledge, except as to matters therein stated to be upon information and belief and as to those matters, I believe them to be true.



JEROME MARSHALL

Sworn to before me this the
27th day of November 2023

~~NOTARY PUBLIC~~

G. WESLEY SIMPSON
Notary Public, State of New York
No. 02816040763
Qualified in Kings County
Commission Expires February 20, 2027

Index Number Year 2023
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS:

JEROME MARSHALL,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and
POLICE OFFICER ANTHONY GRINGAS,

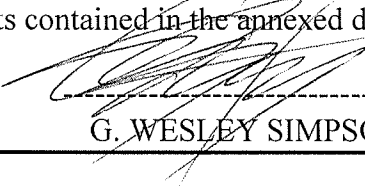
Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

G. WESLEY SIMPSON, P.C.
Attorney for plaintiff(s)
1016 Ralph Avenue
Brooklyn, New York 11236
(718) 345 8213

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contents contained in the annexed document are not frivolous.

Dated:


G. WESLEY SIMPSON, P.C.

Service of the within
Admitted.

is hereby

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Notice of Entry That the within is a (Certified) true copy of an Order entered in the office of the clerk of the within named Court on the day of

Notice of Settlement that an Order of which the within is a true copy will be presented for settlement to the Hon. one of the judges of the within named Court, at on the day of , at 9:30 a.m.

G. WESLEY SIMPSON, P.C.
Attorney for plaintiff(s)
1016 Ralph Avenue
Brooklyn, New York 11236
(718) 345 8213